

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, May 1, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26902 against Detective Nicholas Bacarella, Tax Registry No. 963385. The case was conferenced on April 23, 2024, before Assistant Deputy Commissioner of Trials Vaneesa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule (A) with the forfeiture of Five (5) vacation days. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-26902

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, BACARELLA	FIRST NICHOLAS	M.I. M	COMMAND NARCO BORO S.I.
SHIELD NO. 223	TAX REGISTRY NO. 963385	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Nicholas BACARELLA, on or about May 8, 2021, at approximately 1530, while assigned to 121 PCT and on duty, in the vicinity of § 87(2)(b) Richmond County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in Staten Island without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Nicholas BACARELLA, on or about May 8, 2021, at approximately 1530, while assigned to 121 PCT and on duty, in the vicinity of § 87(2)(b) Richmond County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Staten Island without sufficient legal authority.	DISMISSED	

DC Br...
FIRST DEPUTY COMMISSIONER

5/22/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

7/3/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner May 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26902 against Detective Nicholas Bacarella, Tax No. 963385, with the recommendation that Charges and Specifications against Detective Bacarella be dismissed and that Detective Bacarella receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

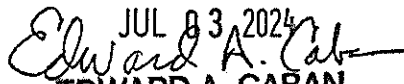


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

JUL 8 3 2024

EDWARD A. CABAN
POLICE COMMISSIONER